

SENATE No. 3074

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, May 28, 2026.

The committee on Public Safety and Homeland Security to whom was referred the petition (accompanied by bill, Senate, No. 2680) (subject to Joint Rule 12) of Dylan A. Fernandes for legislation to improve public health and safety standards in communities around aging nuclear power plants and high-level nuclear waste dump sites, report the accompanying bill (Senate, No. 3074).

For the committee,
John J. Cronin

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An Act to improve public health and safety standards in communities around aging nuclear power plants and high-level nuclear waste dump sites.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 2B of chapter 639 of the acts of 1950 is hereby amended by striking the first
2 paragraph and inserting the following:-

3 The director shall designate certain areas of the commonwealth as “nuclear power plant
4 areas”. For the purposes of this section, said areas shall consist of all communities located within
5 a fifty (50) mile radius of any nuclear power plant or inactive nuclear power plant storing nuclear
6 waste in a spent fuel pool or an Independent Spent Fuel Storage Installation, that is not a
7 stranded asset under Chapter 164 of the Acts of 1997, until all the nuclear waste leaves the site.
8 This designation shall apply whether or not said NNP area is located within the commonwealth.
9 Such assessments may be made against active facilities, or inactive nuclear power facilities that
10 harbor spent nuclear fuel, high-level waste, or other nuclear material in spent fuel pool or in an
11 Independent Spent Fuel Storage Installation, that is not a stranded asset under Chapter 164 of the
12 Acts of 1997, until the nuclear waste leaves the site.